

Mutual Non-Disclosure Agreement (Master NDA 2026)

CONFIDENTIAL & PROPRIETARY LEGAL INSTRUMENT

Section 2.1 — Definition of Proprietary Information

Section 2.1 Confidential Information: Confidential Information includes all proprietary technical, financial, and business data disclosed by either party that is marked confidential or reasonably understood to be proprietary.

Section 4.1 — Permitted Purpose and Disclosure Exceptions

Section 4.1 Exclusions: Confidential Information does not include information that is publicly known, already known to recipient without restriction, or independently developed without reference to disclosed materials.

Section 7.1 — Term of Confidentiality Obligations

Section 7.1 Confidentiality Term: The obligations of non-disclosure shall survive for five (5) years from the disclosure date, except that trade secrets and source code shall remain strictly confidential in perpetuity.

Section 12.4 — Governing Law and Jurisdiction

Section 12.4 Governing Law and Jurisdiction: This Agreement shall be governed exclusively by the internal laws of the State of Delaware, without giving effect to conflict of law rules. Exclusive venue is New Castle County, Delaware.